

SENATE BILL 2105

By White

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-13-118, is amended by adding the following as a new subsection:

(c) Each public charter school shall publish the policy adopted by its governing board on the use of artificial intelligence by students, teachers, and staff for instructional and assignment purposes on the public charter school's website.

SECTION 2. Tennessee Code Annotated, Section 49-2-203(a), is amended by deleting subdivision (16) and substituting instead the following:

(A) Adopt a policy regarding the use of artificial intelligence by students, teachers, and staff for instructional and assignment purposes. The policy must be implemented in schools no later than the 2024-2025 school year. By July 1, 2024, and by each July 1 thereafter, the board shall report to the department of education of its compliance with this subdivision (a)(16). The report must include the adopted policy and describe how the board will enforce the policy in the upcoming school year. As used in this subdivision (a)(16), "artificial intelligence" means a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments and that is capable of using machine and human-based inputs to perceive real and virtual environments, abstract such perceptions into models through analysis in an automated manner, and use model inference to formulate options for information or action; and

(B) Direct each school managed and controlled by the local board of education to publish the board's policy on the use of artificial intelligence by students, teachers, and staff for instructional and assignment purposes on the school's website.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.